

It is to be observed that neither the statutes of 37 E. 3. ca. 18. 38 E. 3. cap. 9. 42 E. 3. ca. 3. 17 R. 2. ca. 6. nor any other statute taketh away the jurisdiction of any settled court of justice, neither is the court of star-chamber named in any of them, and yet was it a court then and before that time.

Divers speciall acts of parliament have been also jurisdiction to this court, viz. 12 R. 2. ca. 11. 2 R. 2. cap. 5. 13 H. 4. cap. 7. 33 H. 8. cap. 1. 4 & 5 Ph. and M. cap. 8. 5 Eliz. ca. 9, 10. & cap. 14. 27 Eliz. cap. 4.

And seeing the proceeding according to the laws and customes of this realm cannot by one rule of law suffice to punish in every case the exorbitancy and enormity of some great horrible crimes and offences, and especially of great men, this court dealeth with them, to the end that the medicine may be according to the disease, and the punishment according to the offence, *Ut pœna ad paucos, metus ad omnes perveniat*, without respect of persons, be they publique or private, great or small.

As for oppression, and other exorbitant offences of great men, (whom inferior judges and jurors (though they should not) would in respect of their greatnesse be afraid to offend) bribery, extortion, maintenance, champerty, imbracery, forgery, perjury, disseisers of false and dangerous rumours, news, and scandalous libelling, false and partiall misdemeanours of sherifs and bailiffs of liberties, frauds, deceits, great and horrible riots, routs, and unlawfull assemblies, single combats, challenges, duels, and other hainous and extraordinary offences and misdemeanours; but ordinary, and such offences as may be sufficiently and condignly punished by the proceeding of the common laws, this court leaveth to the ordinary courts of justice and dealeth not with them, *ne dignitas hujus curiæ vilesceret*, as before is said.

The proceeding in this court is by bill or information, by examination of the defendant upon interrogatories, and by examination of witnesses, and rarely *ore tenus*, upon the confession of the party in writing under his hand, which he again must freely confesse in open court, upon which confession in open court, the court doth proceed. But if his confession be set down too short, or otherwise then he meant, he may deny it, and then they cannot proceed against him but by bill or information, which is the fairest way.

The informations, bills, answers, replications, &c. and interrogatories are in English, and ingrossed in parchment, and filed up. All the writs and processe of the court are under the great seal: the sentences, decrees and acts of this court are ingrossed in a fair book with the names of the lords and others of the kings counsell and justices that were present and gave their voices.

In an information in this court by the attorney generall against Sir Stephen Procter, Birkenhead and others for conspiracy against, and scandall of the earl of Northampton, and Edward lord Wootton two of his majesties privy counsell: at the hearing of which cause there sat eight in court, and four of them condemned the defendant: and the lord chancelour, the two bishops, and the chancelour of the exchequer acquitted him. And the question was, whether the defendant should be condemned or no: and herein it was moved by the kings learned counsell, that when the voices be equal,

The jurisdiction
of this court

Camden Brit.
130. *In camera
stellata tractantur
criminalia, per-
juria, imposturae,
delus malis, ex-
cessus, &c.*

For proceeding,
ore tenus, see be-
fore ro. claus.
17 H. 6. John
Fords case.
Rot. claus.
42 E. 3. the ab-
bot of Brueries
case, &c. *In no-
serius ordo est or-
dinem juris non
servare.*

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Pasc. 12 Ja. Reg.